



Appeal Decision

Site visit made on 7 July 2026

by Chris Mayes CMLI

an Inspector appointed by the Secretary of State

Decision date: 28 August 2026

Appeal Ref: 6009185

Childwall Golf Club, Holt Lane, Naylors/Wheat Hill Road, Netherley, Liverpool L27 2YB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant approval required under Article 3(1) and Schedule 2, Part 16, Class A of the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended).
 - The appeal is made by Jet Infrastructure Limited against the decision of Liverpool City Council.
 - The application reference is 26PT/0473.
 - The development proposed is described on the application form as 30m high lattice tower supporting 6no. VMO2 antennas, 15no. remote radio units (RRUs) and 2no. dishes, together with an operator equipment cabinet, a shared meter cabinet, and associated ancillary development including a fenced compound, foundations, and overhead cabling.
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Decision

1. The appeal is allowed and prior approval is granted under the provisions of Article 3(1) and Schedule 2, Part 16, Class A of the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended) for 30m high lattice tower supporting 6no. VMO2 antennas, 15no. remote radio units (RRUs) and 2no. dishes, together with an operator equipment cabinet, a shared meter cabinet, and associated ancillary development including a fenced compound, foundations, and overhead cabling at Childwall Golf Club, Holt Lane, Naylors/Wheat Hill Road, Netherley, Liverpool L27 2YB in accordance with the application 26PT/0473 and the details submitted with it including plan numbers 100 Rev A, 101 Rev A, 201 Rev A, 301 Rev A, and ARB/5487/Y/200.

Applications for Costs

2. An application for costs was made by the appellant against the Council. This is the subject of a separate decision.

Preliminary Matters

3. Since the appeal was lodged, the National Planning Policy Framework (the Framework) has been updated. I have had regard to the revised Framework in determining this appeal. However, as my decision is primarily concerned with the provisions of the Town and Country Planning (General Permitted Development) (England) Order 2015 as amended (GPDO 2015) the revised Framework has a relatively limited bearing on this appeal. Therefore, I am satisfied that no parties would be prejudiced by me determining the appeal on that basis.
4. The provisions of the GPDO 2015, under Article 3(1) and Schedule 2, Part 16, Class A, paragraphs A.3(4) and A.3(7) require the local planning authority to

assess the proposed development solely on the basis of its siting and appearance, taking into account any representations received. My determination of this appeal has been made on the same basis.

5. The principle of development is established by the GPDO and the provisions of Schedule 2, Part 16, Class A of the GPDO do not require regard to be had to the development plan, and the fact that the appeal site is within the Liverpool Green Belt does not alter this. I have therefore had regard to the policies of the development plan only insofar as they are a material consideration relevant to matters of siting and appearance.
6. The reason for refusal refers to harm to the openness, character and appearance of the surrounding area and Green Belt, and cites policies concerned with Green Belt matters. In this prior approval appeal, I have not assessed whether the proposal would be inappropriate development in the Green Belt, nor have I applied the very special circumstances test. However, the openness, vegetation and landscape characteristics of the area form part of the context within which the siting and appearance of the proposed installation must be assessed.

Main Issue

7. The main issue is whether the proposal would be acceptable in terms of siting and appearance.

Reasons

8. The appeal site lies within a maintenance area associated with Childwall Golf Club. The site contains utilitarian buildings and structures associated with the operation of the golf course and is enclosed on its boundaries by substantial groups of mature trees. Beyond the immediate site, the wider surroundings comprise golf course land, developed land, areas of open countryside and established tree cover.
9. The proposed installation would comprise a 30m lattice tower together with antennas, radio equipment, cabinets, fencing and associated infrastructure. Owing to its height and functional design, the mast would be readily recognisable as telecommunications infrastructure. The upper section of the structure would project above the surrounding tree canopy and would be visible from a range of viewpoints within the surrounding area.
10. Nevertheless, the visual effect of the proposal would be influenced substantially by its siting. It would occupy a developed maintenance compound containing existing buildings and operational infrastructure. In wider views, the structure would generally be seen in conjunction with established tree cover which would provide both screening and visual containment.
11. I recognise that the proposal would remain visible above the tree canopy in some views, particularly during periods when deciduous trees are not in leaf. However, visibility alone does not equate to harm. The evidence demonstrates that mature trees are a defining characteristic of the locality and that they would continue to provide a substantial backdrop to the development throughout the year. Consequently, while the mast would be perceptible from a number of public viewpoints, it would not appear unduly intrusive or visually dominant within the wider landscape.

12. The ancillary equipment at ground level would be contained within the maintenance compound and would be experienced within an already functional and operational setting. As such, those elements would have little influence on the character and appearance of the wider area.
13. The character of the area is informed not only by the mature tree cover and open qualities of the golf course, but also by the presence of Childwall Golf Clubhouse, a non-designated heritage asset. The significance of the building derives principally from its architectural interest as an Art Deco clubhouse and its historic association with the development of recreational facilities on the edge of the city.
14. The proposal would be visible in some views experienced within the setting of the clubhouse. However, the proposal would not obscure the building's principal architectural features or materially diminish the ability to appreciate its significance as a distinctive Art Deco structure within its golf course setting. Consequently, I find that the proposal would preserve the setting of the non-designated heritage asset.
15. I have also considered the various submissions regarding photographic evidence, ownership matters, publicity and procedural issues. However, I am satisfied that the visual effects of the proposal can be properly assessed on the basis of the submitted plans, photographs, written evidence and observations made during my site visit. Nothing before me indicates that these matters would alter my assessment of the siting and appearance of the proposed installation.
16. For these reasons, I am satisfied that the proposed development has been sited and designed such that its visual impact would be limited. While the local area is characterised in part by open golf course land and areas of countryside, existing patterns of vegetation and woodland substantially contain and filter views of the installation. As a result, the limited additional height and bulk of the proposal would not appear visually intrusive or disproportionate in its surroundings and would not materially undermine the open and verdant appearance of the area.
17. Taking all matters together, I conclude that the siting and appearance of the proposed development are acceptable. In reaching this conclusion, I have had regard to Policies STP4, HD1, UD1, UD2, GI1, GI2 and GI4 of the Liverpool Local Plan 2013-2033 (January 2022) (LP) insofar as they relate to matters of siting and appearance, together with the relevant provisions of the Framework. Moreover, as I have found the siting and appearance of the proposal to be acceptable, it is unnecessary for me to determine whether an alternative site might also be capable of accommodating the proposed installation.

Conditions

18. Any planning permission granted for the development under Article 3(1) and Schedule 2, Part 16, Class A is subject to conditions set out in Paragraphs A.3(9), A.3(11) and A.2(2), which specify that the development must, except to the extent that the local planning authority otherwise agrees in writing, be carried out in accordance with the details submitted with the application, must begin not later than the expiration of 5 years beginning with the date on which the local planning authority received the application, and must be removed as soon as reasonably practicable after it is no longer required for electronic communications purposes and the land restored to its condition before the development took place.

19. The GPDO does not provide specific authority for the imposition of additional planning conditions beyond the deemed conditions applicable to this form of development.

Conclusion

20. For the reasons given above, I conclude that the appeal should be allowed and prior approval should be granted.

Chris Mayes

INSPECTOR